THE IMMEDIATE TRIGGER

On July 21, Dhankhar had chaired the noon meeting of the Business Advisory Committee (BAC), attended by, among others, BJP president and Union health minister J.P. Nadda and parliamentary affairs minister Kiren Rijiju. They decided to reconvene at 4:30 pm. The most visible manifestation of the brewing crisis came when the reconvened BAC meeting witnessed a striking absence: neither Nadda nor Rijiju reappeared, leaving junior minister L. Murugan to represent the government.

For a vice-president known to be a stickler for protocol and propriety, this conspicuous recusal, particularly without personal communication, represented more than a scheduling conflict. While Nadda later claimed they had informed Dhankhar's office about their engagement with "crucial parliamentary work", the explanation perhaps was not enough to satisfy Dhankhar. Was the missed BAC meeting a coded message from the government? Some insiders believe it was. A subtle, if cold, signal that Dhankhar had lost the prime minister's confidence.

The immediate catalyst for the government's displeasure appears to have been Dhankhar's handling of the impeachment motion against Allahabad High Court justice Yashwant Varma, at whose residence bundles of cash were allegedly discovered during his tenure in the Delhi High Court. The government had meticulously prepared its own motion for Justice Varma's removal, securing signatures from 100 MPs across party lines. It was received by Lok Sabha Speaker Om Birla around noon. This strategy would have allowed the ruling party to claim leadership on judicial accountability while maintaining control over the process. However, Dhankhar's announcement from the chair that he had received a similar motion in the Rajya Sabha, signed exclusively by Opposition MPs without a single BJP signature, effectively hijacked this narrative.

To comprehend why Dhankhar's procedural move proved so provocative, one must understand the intricate machinery of judicial impeachment in India. The Constitution provides that judges can be removed only through a motion passed by both Houses of Parliament on grounds of "proven misbehaviour or incapacity". The Judges Inquiry Act of 1968 elaborates this process.

An impeachment motion requires either 100 Lok Sabha members or 50 Rajya Sabha members to submit a signed notice. Once admitted, the presiding officer of the receiving House constitutes a three-member committee comprising a Supreme Court judge, a high court chief justice and a distinguished jurist. This committee investigates, frames charges and submits findings. If misbehaviour or incapacity is established, each House of Parliament must pass the motion with two majorities: more than half of the total members, and at least two-thirds of the members present and voting. If one House passes the motion with this required majority, it is then sent to the other House for approval.

Was the absence of Nadda and Rijiju from the BAC meeting a coded message from the govt? Some insiders believe so

Crucially, the presiding officer who first admits the motion gains control over the committee's composition. If both the Lok Sabha and the Rajya Sabha receive notices for the same motion on the same day, a committee is formed only if both Houses admit the motion. Once both Houses admit it, the committee is set up jointly by the Speaker and the Chairman. Dhankhar's reference to the Opposition's motion on the same day thus represented not just a procedural decision but a power play that directly challenged the government's orchestrated approach. Dhankhar, a lawyer by training and a political actor with a keen sense of timing, sought the authority—at least part of it—to choose the members of the committee.

THE GRADUAL DRIFT

This willingness to accommodate Opposition voices had been growing since December 2024, when the INDIA bloc filed an unprecedented no-confidence motion against Dhankhar himself. Though deputy chairman Harivansh Singh rejected the motion, it appears to have marked a turning point in Dhankhar's relationship with both the government and the Opposition. On July 21 morning, for instance, Dhankhar had unilaterally allocated time for discussing Operation Sindoor without consulting the government, allowing Congress president and

AN UNDUE HASTE THAT COST DEAR

Dhankhar, as Chairman of the Rajya Sabha, admitted the Opposition's impeachment motion against Justice Yashwant Varma (inset) even as the government had moved a parallel motion in the Lok Sabha, effectively hijacking the BJP's planned narrative

- **The removal process of a judge is governed by the Judges Inquiry Act, 1968**
- **An impeachment motion can be initiated against a judge in either House of Parliament, citing "proven misbehaviour or incapacity"**
- **To start the process, at least 100 Lok Sabha members must sign and submit the notice to the Speaker, or at least 50 Rajya Sabha members must do the same with the Chairman**
- **If the motion is admitted, the Lok Sabha Speaker or Rajya**